

The Food Security Allowance Rules, 2015

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Union of India - Act

The Food Security Allowance Rules, 2015

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The Food Security Allowance Rules, 2015

Rule THE-FOOD-SECURITY-ALLOWANCE-RULES-2015 of 2015

Published on 21 January 2015

Commenced on 21 January 2015

[This is the version of this document from 21 January 2015.]

[Note: The original publication document is not available and this content could not be verified.]

The Food Security Allowance Rules, 2015

Published vide Notification No. G.S.R. 48(E), dated 21st January, 2015

Ministry of Consumer Affairs, Food and Public Distribution

(Department of Food and Public Distribution)

G.S.R. 48(E). - In exercise of the powers conferred by clause (c) of sub-section (2) of Section 39 read with Section 8 of the National Food Security Act, 2013 (

20 of 2013

), the Central Government, after consultation with the State Governments, hereby makes the following rules, namely:-

1.

Short title and commencement.

(1)

These rules may be called the Food Security Allowance Rules, 2015.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires, -

(a)

"Act" means the National Food Security Act, 2013 (

20 of 2013

);

(b)

"nodal officer" means an officer designated as such by the State Government under section 14 of the Act;

(c)

"entitled person" means a person belonging to eligible households identified as such under the Act by the State Government and in possession of a valid ration card;

(2)

words and expressions used but not defined in these rules shall have the meanings respectively assigned to them in the Act.

3.

Time limits for allocation of foodgrains.

- The Central Government and the State Governments shall adhere to the time limits provided in the Public Distribution System (Control) Order, 2001 or any other orders issued from time to time by Central Government, for allocation of foodgrains and making them available for distribution to the persons entitled under the Act.

4.

Payment of food security allowance in cases of non-supply of foodgrains.

(1)

The nodal officer shall verify, at the end of every month and at each fair price shop, the status of supply of foodgrains to the entitled persons covered under each fair price shop, as per their entitlement under the Act.

(2)

The nodal officer shall record in writing, the reasons for non-supply of entitled quantity of foodgrains to any entitled person.

(3)

The nodal officer shall ensure payment of food security allowance to the entitled person in every case where entitled quantity of foodgrains has not been supplied due to non-availability of foodgrains at the fair price shop or for any unforeseen reasons.

(4)

The nodal officer shall register a complaint with the District Grievance Redressal Officer forthwith where foodgrains have not been supplied due to any willful lapse of any fair price shop dealer.

5.

Verification of status of supply.

- The State Government shall use electronic methods, subject to availability of adequate infrastructure, for carrying out and recording the -

(i)

month-end verification of status of distribution of foodgrains; and

(ii)

reasons for non-distribution, if any, in respect of each fair price shop and place such details in the public domain.

6.

Computation of food security allowance.

- The amount of food security allowance admissible to entitled persons shall be computed by multiplying the difference between the 1.25 times the minimum support price of the relevant foodgrains for that marketing season and the prices

specified in Schedule I to the Act, with the quantity of non-supply.

7.

Period within which food security allowance to be paid.

- The nodal officer shall ensure the payment of food security allowance by the end of the third week of the month following the month in which the non-supply occurred.

8.

Mode of payment of food security allowance.

(1)

The State Government shall ensure the payment of food security allowance to the entitled persons through bank accounts.

(2)

If any entitled person has not opened a bank account, the initial payment of food security allowance to such person shall be made by cash:

Provided that the nodal officer shall ensure that a bank account is opened by such person within one month from the date of initial payment of the food security allowance.

9.

Food security allowance when not payable.

- The Food security allowance shall not be payable to an entitled person who does not visit the fair price shop to claim his entitlement during the month:

Provided that the nodal officer may exempt a person from visiting the fair price shop and claiming his entitlement, for reasons to be recorded in writing:

Provided further that the food security allowance shall not be payable to an entitled person who refuses to claim his entitlement on the ground of quality of foodgrains or on such other grounds.

10.

Summary report by Nodal Officer.

- The nodal officer shall, based on monthly verification of status of supply of foodgrains, specified in rule 4, submit a summary report to the District Magistrate, or any other officer authorised by the State Government for this purpose, by fifteenth day of the month following the month of distribution, indicating the cases of non-supply of foodgrains to the entitled persons, along with reasons and the remedial measure taken, wherever necessary.

11.

Complaint regarding quality of foodgrains.

- Any complaint relating to quality of foodgrains shall be made by the complainant to the District Grievance Redressal Officer in writing seeking redressal of his complaint, which shall be inquired into and decided by the District Grievance Redressal Officer or any other officer authorised by the State Government within a period not exceeding fifteen days.

12.

Distribution of more than one month entitlement.

- Where the State Governments follow the practice of supply of more than one month's entitlement at a time, appropriate arrangements for verification of supply of such entitlements to the entitled persons shall be undertaken by the concerned State Government so as to ensure distribution of foodgrains as per the entitlements or payment of food security allowance to eligible persons in case of non-supply of entitled quantity of foodgrains.

13.

State Governments competent to issue directions.

- The State Governments, if considered necessary, may issue such directions for the implementation of these rules, as deemed fit.

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